

SENATE No. 11

The Commonwealth of Massachusetts

PRESENTED BY:

Joanne M. Comerford

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying proposal for constitutional amendment:

Proposal for a legislative amendment to the Constitution relative to agricultural and horticultural lands.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	
<i>Hannah Kane</i>	<i>11th Worcester</i>	<i>1/31/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>2/11/2025</i>
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	<i>2/26/2025</i>
<i>Michael O. Moore</i>	<i>Second Worcester</i>	<i>3/6/2025</i>

SENATE No. 11

By Ms. Comerford, a petition (accompanied by proposal for constitutional amendment, Senate, No. 11) of Joanne M. Comerford for a legislative amendment to the Constitution relative to agricultural and horticultural lands. Revenue.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 13 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

Proposal for a legislative amendment to the Constitution relative to agricultural and horticultural lands.

A majority of all the members elected to the Senate and House of Representatives, in joint session, hereby declares it to be expedient to alter the Constitution by the adoption of the following Article of Amendment, to the end that it may become a part of the Constitution [if similarly agreed to in a joint session of the next General Court and approved by the people at the state election next following]:

ARTICLE OF AMENDMENT.

1 Article XCIX of the Amendments to the Constitution is hereby annulled, and the
2 following is adopted in place thereof:-

3 Article XCIX. Full power and authority are hereby given and granted to the general court
4 to prescribe, for the purpose of developing and conserving agricultural or horticultural lands, that
5 such lands shall be valued, for the purpose of taxation, according to their agricultural or
6 horticultural uses; provided, that the parcel has been actively devoted to agricultural or

7 horticultural uses for the 2 years preceding the tax year; and provided further, that no law shall
8 be passed that requires a parcel of land to be greater than 5 acres in area to be valued at less than
9 fair market value under this article.